



CHAPTER cv.

An Act to empower the Corporation of Scarborough to construct street improvements and to provide and work lifts on the cliffs of the borough to make further provision with regard to public gardens pleasure grounds and other lands in the borough and the neighbourhood thereof to make further and better provision for the improvement health and good government of the borough to provide for the consolidation of the rates of the borough and for other purposes. A.D. 1925.
[7th August 1925.]

WHEREAS the borough of Scarborough in the north riding of the county of York is subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation") acting by the council are the urban district council for the district of the borough :

And whereas it is expedient to empower the Corporation to execute the street works authorised by this Act and to acquire lands in the borough for and in connection with the construction of such street works and in the urban district of Scalby for recreation grounds or for the purposes mentioned in the Scarborough Order 1921 :

And whereas it is expedient to empower the Corporation to construct and work lifts for the convenience

A.D. 1925. of the public upon the cliffs of the borough and upon other lands belonging to the Corporation therein and to make other provision with regard to the provision and working of such lifts :

And whereas the Corporation are the owners of the Weaponness Estate in the borough belonging to the Corporation and it is expedient to empower the Corporation to demand tolls in respect of vehicles and other traffic upon roads on the said estate :

And whereas it is expedient that the powers of the Corporation with respect to the prevention of the spread of infectious disease and sanitary matters be amended and extended and that further and better provision be made with respect to the improvement management regulation and good government of the said borough :

And whereas it is expedient to provide for the consolidation of the rates levied in the borough :

And whereas it is expedient to empower the Corporation to borrow moneys for the purposes mentioned in this Act and to lend money to certain bodies and persons and to guarantee the repayment of loans of the Scarborough Harbour Commissioners and the payment of interest on such loans :

And whereas it is expedient to provide for the formation of a consolidated loans fund by the Corporation and to make further provision with regard to the finances of the Corporation and the application of revenue derived from their several undertakings :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the construction of the street works	
authorised by this Act	280,000

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

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PART I.

1. This Act may be cited as the Scarborough Short title.
Corporation Act 1925.

Division of Act into Parts.

Part VIII.—Miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated

A.D. 1925. — with this Act with the following exception and modification (namely) :—

- (a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;
- (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

Interpreta-
tion.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

- (a) “The Corporation” means the mayor aldermen and burgesses of the borough of Scarborough;
- (b) “The borough” means the borough of Scarborough;
- (c) “The council” means the council of the borough;
- (d) “The town clerk” “the treasurer” “the medical officer” and “the sanitary inspector” mean respectively the town clerk the treasurer the medical officer of health and any sanitary inspector of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;
- (e) “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;
- (f) “The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

- (g) "Food" has the meaning assigned to it by section 26 of the Sale of Food and Drugs Act 1899; A.D. 1925. —
- (h) "Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;
- (i) "Child" means a person under the age of sixteen years;
- (j) "Daily penalty" means a penalty for each day on which an offence is continued by a person after conviction;
- (k) "The parish" means the parish of Scarborough;
- (l) "The overseers" means the overseers of the poor of the parish;
- (m) "The poor rate" means the poor rate for the parish;
- (n) "The water undertaking" means the water undertaking of the Corporation;
- (o) "The Lands Clauses Acts" means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919;
- (p) "The Act of 1889" and "the Act of 1900" mean respectively the Scarborough Improvement Act 1889 and the Scarborough Corporation Act 1900;
- (q) "Statutory security" and "statutory borrowing power" have the meanings assigned to them respectively by section 207 (Interpretation in this Part of this Act) of the Act of 1889;
- (r) "Revenues of the Corporation" includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

NEW STREETS AND OTHER WORKS.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and

Power to
make
works.

A.D. 1925. — situations and on the lands on that behalf delineated and described in the deposited plans and book of reference and according to the levels shown upon the deposited sections the street works in the borough hereinafter described (namely) :—

Street Work No. 1 A widening and improvement of Columbus Ravine on the easterly side and of Prospect Road on the northerly side;

Street Work No. 2 A new street from the junction of Columbus Ravine Prospect Road and Gladstone Road to Trafalgar Street West;

Street Work No. 3 A new street formed by the widening and improvement of Brook Street on its south-westerly side and Albion Street on its north-easterly side extending from Trafalgar Street West to Victoria Road;

Street Work No. 4 A new street formed by the widening and improvement of Alma Parade on its south-westerly side and Hanover Road on its north-easterly side extending from Victoria Road to Westborough;

Street Work No. 5 A widening and improvement of Valley Bridge Road on its south-westerly side;

Street Work No. 6 A widening and improvement of Valley Bridge Parade on its easterly side;

Street Work No. 7 A widening and improvement of Valley Bridge Parade Valley Bridge and Ramshill Road on the westerly sides thereof respectively;

Street Work No. 8 A widening and improvement of North Marine Road on its north-easterly side;

Street Work No. 9 A widening and improvement of Queen's Parade on its south-westerly side;

Street Work No. 10 A widening and improvement of North Marine Road on its easterly side;

Street Work No. 11 A widening and improvement of North Marine Road on its westerly side;

Street Work No. 12 A further widening and improvement of North Marine Road on its westerly side;

Street Work No. 13 A widening and improvement A.D. 1925.
of Aberdeen Walk on its north-easterly side and —
of Castle Road on its south-easterly side;

Street Work No. 14 A widening and improvement
of York Place on its north-easterly side;

together with all requisite and convenient walls steps
ways approaches footpaths drains culverts fences works
and conveniences connected with the said intended
works respectively all which said works will be situate
in the borough.

6.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation in connection with and for the purposes of this Part of this Act and as part of the works to be executed under the powers of this Act may execute or do any of the following works or things (namely):—

Power to
make sub-
sidiary
works.

(a) Make junctions and communications with any existing streets intersected or interfered with by or contiguous to the works authorised by this Part of this Act or any of them and may divert widen or alter the line or alter the level of any existing street for the purpose of connecting the same with any of such works;

(b) Raise lower or alter any vault arch cellar or area under or adjoining any roadway or footway but so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit;

(c) Execute any works for the protection of any adjoining land or buildings;

(d) Execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings; and

(e) Raise lower alter and interfere with any tramway drain sewer channel or gas or water main or pipe or electricity wire or apparatus within the said limits providing a proper substitute before interrupting the traffic on any such tramway or the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section.

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(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

Temporary
stoppage of
streets.

7.—(1) The Corporation during the execution of the powers of this Part of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same.

(2) The Corporation shall provide reasonable access for foot passengers bonâ fide going to or returning from any such house.

(3) The Corporation shall at all times during the execution of any such works maintain a reasonably sufficient access both for vehicular and pedestrian traffic to the stations or depôts of the London and North Eastern Railway Company within the borough.

For protec-
tion of Scar-
borough
Gas Com-
pany.

8. For the protection of the Scarborough Gas Company (in this section called “the company”) the following provisions shall unless otherwise agreed in writing apply and have effect in relation to the exercise by the Corporation of the powers conferred upon them by this Part of this Act (that is to say):—

(1) At least fourteen days (except in the case of emergency) before commencing the construction of any of the works authorised by this Part of this Act in any street within a distance of five feet from any mains pipes syphons tubes valves stop-cocks or other works (hereinafter called “apparatus”) of the company the Corporation shall deliver to the company plans and sections of the works so proposed to be executed and (except as aforesaid) a notice stating the date when it is proposed to commence such works. The Corporation shall also if required by the company give to them such further information with regard to the works so proposed to be executed as the company may reasonably require:

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- (2) If it should appear to the company that the construction of any of such works will interfere with or endanger any of their apparatus or impede the supply of gas the company may give notice to the Corporation to alter the position of or to protect such apparatus or to substitute temporarily or otherwise other apparatus in such manner as may be reasonably necessary. All alterations or works to be made or executed under this section shall be done and executed by and at the expense of the Corporation but to the reasonable satisfaction and under the superintendence (if such superintendence shall be given) of the engineer of the company. Provided that if the company by notice in writing to the Corporation within seven days after the receipt by them of notice of the intended commencement by the Corporation of any such work so require the company may by their own engineer or workmen themselves carry out such alteration protection or substitution as may be reasonably necessary and the Corporation shall on completion thereof pay to the company the reasonable expenses properly incurred by them in so doing :
- (3) Wherever the Corporation shall under the powers of this Part of this Act add to the roadway any portion of any footway in which there shall be placed any apparatus belonging to the company the company may at the reasonable cost of the Corporation alter the position or depth of such apparatus as may be reasonably necessary to protect the same from danger arising in consequence of the works of the Corporation. Provided that the company shall give to the Corporation notice of any alteration desired by them under this subsection within seven days after the receipt by them of the plans and sections referred to in subsection (1) of this section :
- (4) In the event of such plans and sections not being objected to by the company within fourteen days from the delivery thereof to them the said works shall be executed in accordance therewith :

A.D. 1925.
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- (5) If any interruption in the supply of gas by the Company shall be occasioned by the construction of any of the works authorised by this Part of this Act for a longer period than is reasonably necessary the Corporation shall forfeit and pay to the company for the use and benefit of the company a sum not exceeding ten pounds for every day (beyond such period as is reasonably necessary) during which such interruption shall continue :
- (6) The expense of all repairs or renewals of any apparatus of the company or any works in connection therewith which may be rendered necessary by or in consequence of the acts or defaults of the Corporation their contractors agents workmen or servants in the construction of any of the works authorised by this Part of this Act shall be borne and paid by the Corporation and may be recovered against the Corporation by the company in any court of competent jurisdiction :
- (7) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply.

For protec-
tion of Scar-
borough
Tramways
Company.

9. For the protection of the Scarborough Tramways Company (in this section called "the company") the following provisions shall unless otherwise agreed in writing apply and have effect in relation to the exercise by the Corporation of the powers conferred upon them by this Part of this Act (that is to say) :—

- (1) If in the year nineteen hundred and twenty-six the Corporation purchase the undertaking of the tramways company under the provisions of section 82 of the Scarborough Tramways Act 1902 the value of the undertaking as a going concern shall not be affected by the passing of this Act :

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- (2) Not less than fourteen days before commencing to execute under the provisions of this Part of this Act any work (including therein the demolition of or any interference with any building to which any bracket or wire of the company is attached) in under or over the surface of any part of or adjoining any street in which any tramway of the company or any apparatus provided in connection with or for the purpose of working any such tramway (in this section referred to as "tramway apparatus") is situate the Corporation shall submit to the company plans and particulars of the intended work and shall comply with all such requirements as the company may at any time within fourteen days after the receipt of any such plans and particulars reasonably make for the protection of their tramway and tramway apparatus and for preventing any interruption in the working thereof :
- (3) The Corporation shall not obstruct or interfere with the free uninterrupted and safe user of any of the tramways of the company or any traffic thereon :
- (4) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their tramways or to the traffic thereon by or by reason of the execution or failure of any of the works authorised by this Part of this Act or any act or default of the Corporation or their contractors or any person in the employ of either of them or otherwise and shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (5) If any difference shall arise with respect to any matter under this section between the Corporation and the company the matter in difference shall be referred to and determined by an arbitrator to be appointed on the application of either party after notice in writing to

A.D. 1925.
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the other by the Minister of Transport and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

PART III.

LANDS.

Power to
take lands.

10. Subject to the provisions of this Act the Corporation may (in so far as they are not already possessed of the same) enter on take and use such of the lands in the borough and in the urban district of Scalby delineated on the deposited plans and described in the deposited book of reference as they may require for the following purposes :—

- (1) For the construction of the street works authorised by Part II. (New streets and other works) of this Act or for the purpose of providing space for the erection of buildings adjoining or near to such street works or for other the purposes of the said Part II. :
- (2) For recreation grounds or for the purposes of or mentioned in Articles 2 and 3 of the Scarborough Order 1921 as amended by this Act :

Provided that the Corporation shall not without the consent in writing of the London and North Eastern Railway Company enter upon take or interfere with any part of the northernmost slope of the approach to the Coldyhill bridge of the said company in the urban district of Scalby.

Period for
compulsory
purchase of
lands.

11. The powers of the Corporation for the compulsory purchase of lands for the purposes of Part II. (New streets and other works) of this Act shall cease after the expiration of five years and for the other purposes of this Act after the expiration of three years from the passing of this Act.

As to lands
&c. of
London
and North
Eastern

12. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions shall unless otherwise agreed in writing between the Corporation and the London and North Eastern Railway

Company (in this section called "the company") apply A.D. 1925.
and have effect (that is to say):—

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Railway
Company.

- (1) The Corporation shall not exercise any of the powers of this Act in relation to Street Work No. 5 by this Act authorised before the expiration of four and a half years from the date of the passing of this Act:
- (2) The Corporation shall not without the consent of the company and save as hereinafter provided take for the purposes of Street Works Nos. 5 and 7 more of the company's land than is shown by red colour on the plan signed in duplicate by Harry William Smith on behalf of the Corporation and by John Miller on behalf of the company and the further piece of land at the junction of Westwood and Valley Bridge Road and on the south-easterly side of Westwood coloured blue on the said plan:
- (3) The company shall at the request in writing of the Corporation sell to the Corporation the lands coloured blue upon the said plan at the junction of Westwood and Valley Bridge Road and on the north-westerly side of Westwood:
- (4) If after the expiration of the period referred to in subsection (1) of this section the Corporation commence to exercise the powers of this Act in relation to the said Street Work No. 5 the company (in any alteration or reconstruction of their station which involves the provision of an entrance thereto or exit therefrom for vehicular traffic in Valley Bridge Road commenced within ten years from the expiration of the said period) shall at the request of the Corporation sell to them the further piece of land coloured yellow on the said plan:
- (5) The Corporation shall pay to the company the cost not exceeding ten thousand pounds as certified by the company's engineer of making such alterations of their fish sidings coal depôts and other property and works rendered necessary by the acquisition by the Corporation of the lands coloured blue referred to in subsection (3) of this section. And the Corporation shall within three months after the passing of this Act produce to the Commissioners of Inland Revenue

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a King's Printer's copy of this Act stamped with the duty at the rate of two shillings and sixpence for every one hundred pounds of the sum of ten thousand pounds contingently payable under this section and in default of such production the amount of the said duty with interest thereon at the rate of five per centum per annum from the time hereinbefore fixed for production until payment shall be a debt from the Corporation to His Majesty :

- (6) If the Corporation purchase the whole or any part of the lands coloured red and blue on the said plan they shall pay to the company at the following rates in respect thereof (that is to say) five pounds ten shillings per square yard for the land north-west of Westwood coloured red and blue on the said plan and one pound per square yard for the land south-east of Westwood also coloured blue on the said plan and if the Corporation purchase the lands coloured yellow on the said plan they shall pay to the company therefor a sum of two thousand pounds :
- (7) The Corporation shall at their own expense when required by the company reinstate to the Company's reasonable satisfaction any of the company's walls gates entrances drains roads and other similar works (other than those referred to in subsection (5) of this section) which may be interfered with by the works of the Corporation :
- (8) The Corporation shall not raise any objection to the diversion by the company of the road known as Westwood from its present position to that coloured green on the plan and shall subject to their rights and interests being duly protected in connection with any sewers drains mains pipes wires or other works support the company in any application which may be necessary to authorise the diversion of the said road Upon the completion of such diversion the site and soil of the portion of Westwood rendered unnecessary by such diversion shall vest in the company without their being required to make any payment therefor.

13. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions shall unless otherwise agreed in writing between the Corporation and the Scarborough and Whitby Breweries Limited (in this section called "the company") apply and have effect (that is to say):—

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As to lands
&c. of Scar-
borough
and Whitby
Breweries
Limited.

The Corporation shall not enter upon take or use (a) the lands of the company numbered 214 and 215 on the deposited plans nor (b) the lands of the company numbered 325 330 331 332 333 58 16 and 94 on the deposited plans except upon the terms of an agreement dated the twenty-sixth day of June nineteen hundred and twenty-five and made between the company of the one part and the Corporation of the other part.

14.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

Extinction
of private
rights of
way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

15. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the fifteenth day of November nineteen hundred and twenty-four if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary or was made or created with a view to obtaining or increasing compensation under this Act.

Compensa-
tion in case
of recently
acquired
interest.

16. In estimating the amount of compensation or purchase money to be paid by the Corporation under this Part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the

Benefits to
be set off
against
compensa-
tion.

A.D. 1925. — construction of any new street or of the widening or improvement of any existing street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Power to
lay out
gardens on
lands ac-
quired
under Act.

17. The Corporation may lay out and maintain as gardens open spaces or as public walks and pleasure grounds any lands in the borough acquired under the provisions of the section of this Act of which the marginal note is "Power to take lands" and not required for the purposes of the street works authorised by this Act.

Power to
develop
lands &c.

18.—(1) The Corporation may lay out and develop any lands within the limits of deviation for the street works numbered 1 to 4 inclusive 10 and 12 authorised by this Act acquired by them under the powers of this Act and not required for the purposes for which they were acquired and erect and maintain shops offices warehouses and other like buildings and construct pave flag channel and kerb streets roads and ways on any such lands and may sell lease exchange or otherwise dispose of any such shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of this

Act or which may be in the neighbourhood of the street works authorised by this Act or any of them with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange. A.D. 1925.
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(5) Nothing in this section shall authorise the Corporation to create or permit any nuisance on any such lands as are referred to therein.

19.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister of Health. Further powers for the acquisition of land.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

(a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extin-

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guishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or

(b) in such other manner as may be approved by the Minister of Health.

Retention
and disposal
of lands.

20.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the borough (other than the Housing Acts 1890 to 1923) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) Provided that—

(a) The Corporation shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests;

(b) Nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease or other disposition of any lands of the Corporation in any case in which such consent would be required under any other Act if this Act had not been passed.

Proceeds of
sale of sur-
plus lands.

21.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or

exchange of or by leasing any lands acquired under the authority of this Act (other than lands acquired under the section of this Act of which the marginal note is "Further powers for the acquisition of land") in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health.

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—

(2) Provided that—

(a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase;

(b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

22.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them for the purposes of their several undertakings and offices and other buildings for those purposes and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Corporation for the purposes of the said undertakings and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

Dwelling-houses for persons in Corporation's employment.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

PART IV.

PUBLIC GARDENS PLEASURE GROUNDS CLIFFS &C.

23. The powers conferred upon the Corporation by paragraphs (a) (b) and (c) of Article 2 (Powers as to Extension of Article 2 of Scarborough

A.D. 1925. certain parks &c.) of the Scarborough Order 1921 may
— be exercised by the Corporation in relation to the
Corporation Order 1921. following:—

- (i) lands in the urban district of Scalby which the Corporation are by this Act authorised to acquire and which are shown upon the deposited plans and described in the deposited book of reference;
- (ii) so much of the lands belonging to or to be acquired by agreement by the Corporation which adjoin the lands first above referred to as shall be approved by the Minister of Health;
- (iii) with the approval of the Minister of Health and subject to such conditions (if any) as he may prescribe any public parks gardens grounds or recreation grounds other than those referred to in the said article and belonging to or under the control of the Corporation or any part or parts thereof respectively.

Power to
construct
&c. lifts.

24.—(1) The Corporation may construct equip and maintain lifts upon the cliffs seashore or lands belonging to them in the borough for the conveyance of passengers vehicles goods and things and may provide all necessary buildings and apparatus therefor and may let any such lift or lifts on lease for such period at such rent and subject to such covenants and conditions as the Corporation may think fit or may work any such lift or lifts and charge reasonable sums for the use thereof and may make byelaws for regulating such use and charges and for preventing injury or damage to such lift or lifts and for regulating the conduct of persons using the same.

(2) The Corporation may in lieu of constructing any such lift if they think fit let any part of the cliffs seashore or lands belonging to them for the construction thereof for such period at such rent and subject to such covenants and conditions as the Corporation may think fit.

(3) The Corporation may by agreement purchase and hold any lift or lifts which has or have been or may hereafter be constructed by persons other than the Corporation in the borough and upon such purchase the Corporation may exercise in respect of the lift or lifts

so purchased any of the powers contained in subsection (1) of this section. A.D. 1925.

(4) Any lift moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs belonging to or used by the Postmaster-General.

25.—(1) In this section the expression “the signed plan” means the plan signed in duplicate by Colonel Sir Joseph Nall the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited in the Parliament Office of the House of Lords and one in the Private Bill Office of the House of Commons. Power to charge tolls and exercise other powers on Weaponness Estate.

(2) The powers conferred upon the Corporation by the provisions hereinafter mentioned of the Act of 1889 and the Scarborough Order 1919 in relation to the marine drive or carriage road with a promenade for foot passengers and sea wall the construction whereof was authorised by the said Act of 1889 shall extend and apply with any necessary modifications to the roads upon the estate of the Corporation known as “the Weaponness Estate” which are coloured pink upon the signed plan as if those roads were referred to in those provisions wherever the words “the said road or drive” occur. Provided that no toll or charge shall be demanded or made for any police officer acting in the execution of his duty any passenger on foot or for any bicycle tricycle perambulator or bath chair which is propelled by human power and no toll or charge shall be demanded or made in respect of any vehicle bonâ fide going to or returning from any private dwelling-house on or adjoining the said Weaponness Estate.

(3) The provisions of the Act of 1889 and the Scarborough Order 1919 hereinbefore referred to are:—

The Act of 1889—

Section 174 (Corporation may erect toll-gates and toll-houses);

Section 175 (Tolls to be taken);

Section 176 (Exemptions from tolls);

Section 178 (Fractional part of tolls);

Section 179 (Power to grant licences of exemption);

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Section 182 (Application of tolls);

Section 183 (Corporation may lease tolls);

Section 184 (List of tolls to be exhibited on a board);

Section 185 (Corporation may make and vary byelaws).

The Scarborough Order 1919—

Article II. (Power to vary reduce raise or increase tolls for use of Marine Drive);

Article III. (Power to close Marine Drive).

(4) The tolls which may be taken by the Corporation under this section in respect of the said roads shall be paid to such persons and at such places upon or near the said roads and in such manner and under such regulations as the Corporation shall by notice to be annexed to the list of tolls appoint and the Corporation may recover such tolls in a summary manner as a civil debt or by action in any court of competent jurisdiction.

(5) If the tolls payable by any person desirous of using the said roads or any of them be demanded from him before using the same and such person shall after demand from him of such tolls (such demand being made by any collector or other person appointed to receive the same) knowingly and wilfully refuse or neglect to pay the same or any part thereof the collector or other person so appointed may refuse to permit the person so in default to use the said roads or any of them and may by himself or with such assistance as he shall think necessary stop and prevent the person so in default from using the same.

(6) If any person knowingly and wilfully and with intent to defraud refuse or neglect to pay the tolls which shall have been demanded from him and be payable by him by virtue of this section he shall for every such offence be liable to a penalty not exceeding forty shillings.

Provisions
as to certain
woods &c. in
Scalby and
East Ayton.

26.—(1) (a) If at any time the Corporation shall acquire the estates and lands known as the Ruston Cliff Wood the Rowbrow Wood the Raincliffe Wood the Throxenby Mere and Lady Edith's Drive (all in the urban district of Scalby and the parish of East Ayton) or any of those estates and lands from the Raincliffe Trust Limited or other the owners for the time being thereof they may exercise in regard to those estates and

lands all or any of the powers conferred upon them by the enactments mentioned in subsection (2) of the section of this Act of which the marginal note is "Power to charge tolls and exercise other powers on Weaponness Estate" and those enactments shall extend and apply with any necessary modification to all or any of the roads upon the said estates and lands so acquired by the Corporation which are not for the time being highways repairable by the inhabitants at large as if the estates and lands so acquired were referred to in those enactments wherever the words "the said road or drive" occur :

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(b) Nothing in this section shall prevent the Scalby Urban District Council or the Scarborough Rural District Council (as the case may be) from declaring any of the said roads to be highways repairable by the inhabitants at large in accordance with the provisions of the Public Health Act 1875 and in the event of any of the said roads becoming a highway so repairable the powers conferred upon the Corporation by this subsection shall cease and determine in respect of such road.

(2) The said estates and lands if acquired by the Corporation may if the Corporation by resolution so determine be pleasure grounds of the Corporation within the meaning of the Public Health Acts and public parks gardens pleasure grounds or recreation grounds of the Corporation within the meaning of the Act of 1889 and the Scarborough Order 1921 and the unrepealed provisions of those Acts and that Order respectively shall apply thereto accordingly.

(3) If the said estates and lands or any of them are acquired by the Corporation and become pleasure grounds or public parks gardens pleasure grounds or recreation grounds under the provisions of subsection (2) of this section the byelaws of the Corporation shall apply to such estates and lands as if they were situate within the borough and no byelaws made by any other authority with regard to parks gardens pleasure grounds or recreation grounds shall apply to such estates and lands.

PART V.

INFECTIOUS DISEASE AND SANITARY MATTERS.

27. Whenever the medical officer shall report in Medical in-writing to the Corporation or to a committee of the inspection of inmates of

A.D. 1925.

—
common
lodging-
houses.

council that there is a prevalence of dangerous infectious disease in the borough or any adjoining or neighbouring borough or district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say) :—

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation or of such committee as aforesaid may exist or has recently existed in any common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a licensed common lodging-house in the borough and to the Minister of Health :
- (3) Unless approved by the Minister of Health any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Minister of Health :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred

during such period not exceeding the period A.D. 1925.
during which the provisions aforesaid shall be —
in force as may be specified in such warrant.

28. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in any occupation connected with food intended for the use of man or knowingly carries on any trade or business connected with food intended for the use of man in such a manner as to be likely to spread the infectious disease he shall be liable to a penalty not exceeding forty shillings.

Prohibition
on infected
person
carrying on
business.

29.—(1) The following provisions shall apply to any room shop or other part of a building in which room shop or part of a building any article whether solid or liquid intended or adapted for food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale :—

Sanitary
regulations
for pre-
mises where
food is de-
posited for
sale.

- (a) No urinal water-closet earth-closet privy ashpit or other like sanitary convenience shall be within such room shop or other part of a building or shall communicate therewith except through the open air or through an intervening ventilated space;
- (b) No cistern for supplying water to such room shop or other part of a building shall be in direct communication with and directly discharge into any such sanitary convenience;
- (c) No drain or pipe for carrying off fæcal or sewage matter shall have any inlet or opening within such room shop or other part of a building;
- (d) No such room shop or other part of a building shall be used as a sleeping place and so far as may be reasonably necessary to prevent risk of the infection or contamination of any such article as aforesaid no sleeping place shall adjoin such room shop or other part of a building and communicate therewith except through the open air or through an intervening ventilated space;
- (e) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in any such room shop or other part of a building

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except so far as may be reasonably necessary for the proper carrying on of the trade or business;

(f) Due cleanliness shall be observed in regard to such room shop or other part of a building and all articles apparatus and utensils therein and shall be observed by persons engaged in such room shop or other part of a building.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building wherein any of the conditions prohibited by this section exist or does or knowingly permits any act or thing therein in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of the provisions of this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

(4) The provisions of this section shall not apply to any factory within the meaning of the Factory and Workshop Act 1901.

Entry on
premises
used for
storage of
food.

30.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have power to enter the premises of any vendor of or merchant or dealer in any article intended for food or any premises where any such article is for the purposes of sale deposited or stored or is in preparation for sale for the purpose of inspecting such premises and the materials or commodities or articles of food therein.

(2) On any such inspection the said officer of the Corporation shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis he shall forthwith notify to the vendor merchant or dealer or the

agent of such person his intention to have the same analysed by the public analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such vendor merchant dealer or agent. The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the analyst.

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(3) The expression "public analyst" in this section means the analyst appointed by the Corporation for the purposes of the Sale of Food and Drugs Acts 1875 to 1907.

31. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any article of food intended for sale or in the course of delivery after sale for the food of man and the provisions of such sections shall apply accordingly.

Further powers in relation to unsound meat.

32. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the borough and any person so blowing or inflating any carcase or part of a carcase or exposing or depositing for sale within the borough a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding five pounds.

Prohibition of blowing or inflating carcasses.

33.—(1) The Corporation may make byelaws for promoting sanitary and cleanly conditions in the manufacture preparation storage transport or exposure for sale of any article intended to be sold for food.

Byelaws as to food.

(2) Before confirming any byelaws made under this section as regards any business carried on in any factory or workshop to which the Factory and Workshop Acts 1901 to 1920 apply the Minister of Health shall consult the Secretary of State.

(3) At least one month before applying to the Minister of Health for confirmation of any byelaws

A.D. 1925. made under this section applicable to the storage or
— transport by a railway company of any article intended
for food the Corporation shall give notice to the Company
of their intention to make such application and such
notice shall be accompanied by a copy of the proposed
byelaws.

For regu-
lating
manufac-
ture and
sale of ice-
cream &c.

34.—(1) Any person being a manufacturer or vendor
of or merchant or dealer in ice-cream or other similar
commodity who—

- (a) causes or permits ice-cream or any similar com-
modity or any materials used in the manufacture
thereof to be manufactured sold or stored in any
sleeping room or in any cellar room or place
which is in a condition likely to render such
commodity injurious to health or in which
there is an inlet or opening to a drain; or
- (b) in the manufacture sale or storage of any
such commodity does any act or thing likely
to expose such commodity to infection or
contamination or omits to take any proper
precaution for the due protection of such
commodity from infection or contamination;
or
- (c) omits on the outbreak of any infectious disease
amongst the persons employed in his business
or residing in any premises which are used by
him for the manufacture of ice-cream or other
similar commodity to give notice thereof to
the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or
resident suffering from any infectious disease the medical
officer or the sanitary inspector or any other officer who
is duly authorised by the Corporation in that behalf may
seize and destroy all ice-cream or similar commodity or
materials for the manufacture of the same in any of
the premises and the Corporation shall compensate the
owner of the ice-cream or similar commodity or material
so destroyed Provided that no compensation shall be
payable in respect of any ice-cream or similar commodity
or materials for the manufacture of the same manufac-
tured or brought upon the said premises after such
seizure and while any such person is suffering from
infectious disease.

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(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) (a) The medical officer and the sanitary inspector and any other officer who is duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein and any cart barrow or stand in or on which the same are offered for sale as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned:

(b) any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

(5) Section 37 (For regulating manufacture and sale of ice-cream &c.) of the Act of 1900 is hereby repealed.

35.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of rag and bone merchant or any person acting on behalf of any such person as aforesaid to sell or distribute any article of food or any bladder or balloon inflated or capable of inflation by human breath from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from any shop or premises used for or in connection with the business of rag and bone merchants.

Rag and
bone dealers
not to sell
food or
bladders &c.

(2) Every person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

36.—(1) Any premises used or proposed to be used for the preparation or manufacture of potted or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier

Registra-
tion of pre-
mises used
for prepara-
tion of

A.D. 1925. thereof with the Corporation from time to time and no
potted and premises shall be used for the purposes aforesaid unless
preserved the same are registered as aforesaid.
foods.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

Public
notice to be
given of
foregoing
provisions
of this Part
of Act.

37. Public notice of the effect of the foregoing provisions of this Part of this Act shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall.

Provision of
public
slaughter-
houses.

38.—(1) Notwithstanding anything contained in any other enactment to the contrary the Corporation may exercise within the borough all or any of the powers conferred upon an urban authority with respect to slaughter-houses by the Public Health Act 1875 or any Act amending the same or any enactment incorporated therewith respectively.

(2) The fees and charges to be demanded and received by the Corporation in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Minister of Health and the Corporation may make byelaws accordingly. Provided that the Corporation shall have power to charge for any slaughter-house let at a weekly monthly or other rent such sum as may be agreed upon by the Corporation and the renters.

(3) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Acts 1894 to 1914 or of any order or licence of the Minister of Agriculture and Fisheries made or granted thereunder.

39.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation is satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879.

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As to filthy premises.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

40.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may examine the person and clothing of any child (other than children in boarding schools including reformatory and industrial schools) and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice.

Cleansing of children and their clothing.

(2) If the person to whom any such notice as aforesaid is given fails to comply therewith within the prescribed time he shall be liable to a penalty not exceeding ten shillings and the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice and may cause the person and clothing of such child to be properly cleansed in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant

A.D. 1925. — other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Where after the person or clothing of a child has been cleansed under the provisions of this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall be liable to a penalty not exceeding ten shillings.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer.

(5) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last known residence.

In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of the child whose person or clothing requires to be cleansed.

PART VI.

RATING.

Commence-
ment of this
Part of Act.

41. This Part of this Act shall come into operation as from the thirty-first day of March nineteen hundred and twenty-six.

All expenses
of Corpora-
tion to be
paid out of
borough
fund and
rate.

42.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund or general district rate shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Part of this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such

fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate. A.D. 1925.
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(2) The district fund shall be closed and any balance standing to the credit or to the debit of the district fund or the general district rate respectively shall be transferred to the credit or the debit (as the case may be) of the borough fund but any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

43. The contribution of the parish to the borough rate shall be paid by the overseers out of the poor rate and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall (subject to the provisions of this Part of this Act) apply to the said contribution. Contribution to borough rate to be paid out of poor rate.

44. The poor rate (inclusive of the contributions to the borough fund levied as part thereof in pursuance of the provisions of this Act) shall be called "the general rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate. Poor rate to be called general rate.

45. The provisions contained in this section shall have effect with respect to the general rate to be made and levied by the overseers (that is to say) :— Differential rating for certain classes of hereditaments.

- (1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a

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canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the general rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty-three and one-half per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section less the discount from time to time allowed in pursuance of the section of this Act whereof the marginal note is "Discount on general rate" :

- (2) During the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the borough as if the following provision were substituted for section 1 thereof (that is to say) :—

"The owner of tithe rentcharge attached to a benefice shall be liable to pay only sixty per centum of the amount payable under subsection (1) of the section of the Scarborough Corporation Act 1925 whereof the marginal note is 'Differential rating for certain classes of hereditaments' in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining forty per centum thereof shall on demand being made by the collector of the rate on the inspector of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of estate duty grant" :

- (3) (a) During the continuance of the Agricultural Rates Acts 1896 and 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of one-fourth only (instead of sixty-three and one-half per centum) of the amount in the pound of the rate payable in

respect of hereditaments not within the provi- A.D. 1925.
sions of this section ;

(b) On the expiration of the Agricultural Rates Act 1923 the words "thirty-eight per centum" shall during the continuance of the Agricultural Rates Act 1896 be substituted for the words "one-fourth" in paragraph (a) of this subsection :

(4) Nothing in this section shall in any way affect—

(a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

(b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half-year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923; or

(c) The operation of the Ecclesiastical Tithe Rentcharges (Rates) Acts 1920 and 1922; or

(d) The amount of the contribution for any purposes to be made by the parish out of the poor rate :

(5) (a) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal

A.D. 1925.
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and of the ground thereof be given by the appellant to the Corporation and the overseers;

(b) On appeals under this section the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

Rating of
owners in-
stead of
occupiers.

46.—(1) Sections 3 and 4 of the Poor Rate Assessment and Collection Act 1869 (as amended by any subsequent Act) shall in their application to the borough apply and have effect as if in the said section 3 all or any (at the option of the Corporation) of the following properties were referred to in lieu of hereditaments the rateable value of which does not exceed eight pounds namely:—

(a) Property of which the rateable value does not exceed ten pounds;

(b) Property let in separate apartments;

(c) Property in respect of which the rents are collected weekly.

(2) Provided that the owner of any property referred to in subsection (1) of this section shall only be entitled to any abatement and deduction which may be allowed under the said sections 3 and 4 as amended by this section if he shall pay the rate in respect of the premises in respect of which the same is proposed to be allowed within six months after such rate shall have been made if made for a period of one year or within three months after the rate shall have been made if made for any less period or in either case within two months after the same shall have been demanded whichever shall be the later.

(3) Notwithstanding anything in this Part of this Act contained the provisions of this section shall come into operation on the passing of this Act but so that any resolution thereafter passed by the Corporation under the said provisions and any agreement with or notice by any owner thereafter made or given under either of the said sections 3 and 4 of the said Act shall not take effect until after the commencement of this Part of this Act and any agreement with or notice given by any owner under either of the said sections in force at the passing of this Act shall be and the same are hereby

determined on and from the commencement of this Part of this Act. A.D. 1925.

47. Section 220 (Description of owner or occupier) and section 221 (Rates may be amended) of the Public Health Act 1875 shall apply to the borough in respect of the general rate as if the overseers were an urban authority and the rate therein mentioned were the general rate and the said section 221 shall extend to enable the overseers to amend any rate made by them in pursuance of this Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate. Certain sections of Public Health Act 1875 to apply.

48. The overseers if so required by the Corporation shall in pursuance of the provisions of section 15 (Overseers may make poor rate payable by instalments) of the Poor Rate Assessment and Collection Act 1869 declare that any general rate made by them for a period exceeding three months shall be paid by instalments at such times as shall have been previously specified by the Corporation. Payment of general rate by instalments.

49. The provisions of section 267 of the Public Health Act 1875 shall apply to demand notes for the general rate to be served by the overseers and also in respect of water rates and charges to be served by the Corporation. Service of rate demands by post.

50.—(1) The Corporation may from time to time if they think fit direct the overseers to make an allowance by way of discount not exceeding five per centum on the amount due in respect of any general rate or any instalment thereof from every person who pays the same within such time after demand of the rate or after the date when any instalment falls due as the case may be as the Corporation shall prescribe and in any such case the overseers shall make such allowance accordingly. Discount on general rate.

(2) Provided that the same rate of discount shall be allowed to every ratepayer in similar circumstances.

(3) No such allowance as aforesaid shall be made to a person in respect of any hereditament unless he has paid or at the same time pays all rates (including water rates and charges) and instalments thereof then due from him either to the Corporation or to the overseers in respect of that hereditament or where two or more

A.D. 1925. hereditaments are included in one demand note in respect of all such hereditaments.

(4) Notice of this enactment shall be endorsed on every demand note for rates.

Water rate
may be
collected
with general
rate.

51.—(1) Any water rate or charge payable to the Corporation may be collected together with the general rate and the same books may be used for the said rate and charge and the general rate.

(2) The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate and water rate or charge shall be in such form as the Minister of Health may from time to time prescribe.

(3) Subsection (3) of section 89 (Collection of local rates) of the Act of 1900 is hereby repealed.

As to sec-
tion 133 of
Lands
Clauses Con-
solidation
Act 1845.

52. For the purpose of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor's rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be fifty per centum of the amount in the pound of the general rate.

As to re-
covery of
general rate.

53. No warrant of commitment in respect of non-payment of the general rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

Overseers
may require
returns.

54.—(1) The overseers of the parish may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parish (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the First Schedule to this Act and containing the particulars therein mentioned or referred to :

Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

(a) upon any change in the occupation or ownership of any hereditament; or

- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.
- A.D. 1925;
—

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after receipt of such notice as aforesaid shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers of the parish shall whenever required by the assessment committee of the Scarborough Poor Law Union produce from time to time to such committee the returns or any of them obtained by the overseers under the provisions of this section.

(4) Nothing in this section shall require a railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations.

55. The purposes to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

Borough
rate may
include
working
balance.

PART VII.

FINANCIAL.

56.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned

Power to
borrow.

A.D. 1925. — in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (each of which is referred to as "the prescribed period" in certain of the enactments extended and applied to and for the purposes of this Act by the section thereof of which the marginal note is "Moneys borrowed to be principal moneys") mentioned in the third column thereof (namely):—

1.	2.	3.
Purpose.	Amount.	Period for Repayment.
(a) The purchase of lands for the construction of the street works authorised by this Act and for the other purposes mentioned in this Act.	The sum requisite. £	Sixty years from the date or dates of borrowing.
(b) The construction of the street works authorised by this Act.	280,000	Forty years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may for the purposes of the section of this Act of which the marginal note is "Corporation may lend money to certain bodies and persons" borrow any sum or sums not exceeding the amount of any loan advanced in accordance with that section and of any capital sum paid under any guarantee given thereunder.

(b) The Corporation shall repay any money borrowed by them under this subsection within a period not exceeding sixty years or expiring not more than one year after the date upon which the body or person to whom the loan is advanced is required to repay the loan in respect of which the money is borrowed (whichever is the earlier) and that period is in this Act referred to as "the prescribed period."

(3) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) The Corporation may also borrow such further moneys as may be necessary for the purpose of providing a fund for working capital as respects the borough fund and borough rate or any undertaking of the Corporation with the consent of the Minister of Health. A.D. 1925.
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(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the said Minister and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(d) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

57. Moneys authorised to be borrowed by the Corporation under the provisions of this Act shall be and the same are hereby declared to be principal moneys within the meaning of the Act of 1900 and the provisions of that Act with respect to principal money the borrowing or raising of money and the payment off of money borrowed shall subject to the provisions of this Act apply accordingly. Moneys borrowed to be principal moneys.

58. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts— As to borrowing powers under Public Health Act 1875.

(a) any sums which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts;

(b) the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Corporation under those Acts.

59.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed Sinking fund.

A.D. 1925. by the issue of stock) such sinking fund shall be formed and maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

A.D. 1925.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(6) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as that Minister may direct.

(7) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(9) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay

A.D. 1925. — the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister of Health shall otherwise direct.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

(11) All moneys which at the commencement of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Use of
moneys
forming
part of sink-
ing and
other funds.

60. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any fund accumulated for the redemption of debt or as a reserve renewals depreciation contingent or insurance or other similar fund (in this section respectively referred to as "the lending fund") and not for the time being required for the purpose for which the moneys have been accumulated subject to the following conditions:—

(1) The moneys so used shall be repaid by the borrowing fund to the lending fund out of the revenues of the Corporation within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable. Provided that the Corporation may if they so determine repay to the lending fund the amount so used at any time within the period aforesaid:

(2) Interest shall be paid by the borrowing fund to the lending fund on any moneys so used and for the time being not repaid to the fund and such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the

A.D. 1925,
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rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the revenues of the Corporation :

- (3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to the re-borrowing of sums raised under the statutory borrowing power shall apply thereto.

61.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and twenty-six the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

Consoli-
dated loans
fund.

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power ;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose ;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt ; and
- (d) a sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock mortgages or other securities issued in exercise of the statutory borrowing powers of the Corporation and remaining outstanding ;

and there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as

A.D. 1925. have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date as from which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;

(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and

(c) in the payment of dividends and interest on stock mortgages or other securities issued in the exercise of any statutory borrowing power of the Corporation and remaining outstanding;

and the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the interest arising from the investments thereof shall not except with the consent of the Minister of Health be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund,

62. Notwithstanding anything contained in the Acts or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund which has been formed by the Corporation for any purpose may be three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve.

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Further provisions as to sinking funds.

63.—(1) When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation (that is to say):—

Investment of and payments into sinking fund.

(a) The Corporation may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities;

(b) The accumulations of the said yearly sums shall be paid and provided out of the borough fund and borough rate and any interest dividends and the proceeds arising from the investment of the said yearly sums and the accumulations thereof including any moneys standing to the credit of any sinking fund or loans fund as aforesaid at the passing of this Act shall be paid into the borough fund.

(2) Section 202 (Investment of sinking funds) of the Act of 1889 is hereby repealed.

64.—(1) The Corporation shall have power—

Power to re-borrow.

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing

A.D. 1925.

power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following provisions are hereby repealed without prejudice to anything done or suffered to be done thereunder;—

Section 52 (Power to re-borrow) of the Scarborough Corporation Water Act 1878;

Section 195 (Power to re-borrow) of the Act of 1889;

Article VIII. of the Scarborough Order 1897;

Section 84 (Power to re-borrow) of the Act of 1900.

Return to
Minister of
Health with
respect to
repayment
of debt.

65.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer

or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1925.
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(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision (other than the foregoing provisions of this section) of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

66. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Interest on
mortgages
held jointly.

67. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Receipt in
case of
persons not
sui juris.

A.D. 1925.

Evidence of
transfer or
transmission
of securi-
ties.

68. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Issue of
different
classes of
stock.

69.—(1) Notwithstanding anything contained in section 208 (Creation of corporation stock) of the Act of 1889 or section 86 (Power to issue stock at a lower rate of dividend) of the Act of 1900 the Corporation may exercise any statutory borrowing power by the creation and issue of such new classes of redeemable stock as the Corporation may deem fit at such price respectively and bearing such dividend respectively as the Corporation may (with the approval of the Minister of Health) by the resolution for the issue of each such class determine Provided that the Corporation shall not issue more than one class of stock bearing the same rate of dividend.

(2) Each class of stock created under this section shall bear a distinguishing name or number to be given by the resolution creating it and shall be created on and subject to such terms and conditions as that all stock in the class shall bear one and the same rate of dividend and shall become redeemable as hereinafter provided at the expiration of the same period from the first creation of the stock of that class.

(3) After the expiration of such a period from the creation of each class of stock as the Corporation shall by the resolution creating the same declare all stock comprised therein shall be redeemable at par at the option of the Corporation and within such a period (not exceeding sixty years) from the first creation of each class of stock as the Corporation shall by such resolution

declare the whole of the stock comprised therein shall be redeemed or purchased and extinguished. A.D. 1925.

(4) All stock created and issued under this section shall be charged in the same manner as and rank *pari passu* with stock issued under the Act of 1889 and the Act of 1900 and shall otherwise be subject to the provisions of those Acts as altered by subsequent Acts and Orders except so far as the same are altered by this Act.

70.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act in regard to the borrowing and repayment of money with or without modification and may make provision in regard to all matters incidental to the objects aforesaid. Scheme for
equated
periods.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Minister of Health who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister of Health may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister of Health separate consolidations may be made of all or any of the loans included under such general headings.

A.D. 1925.

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(5) The Corporation may with the sanction of the Minister of Health and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto and any moneys so borrowed shall be repaid within such period as the Minister of Health may sanction.

(6) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Period for
repayment
of loans
under Muni-
cipal Corpo-
rations Act
1882.

71. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Appointed
auditors.

72.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.”

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the borough.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein

instead of the borough auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties. A.D. 1925.
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(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

(6) Section 261 (Paid auditors) of the Act of 1889 is hereby repealed.

73.—(1) The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882—

Subscrip-
tions to local
government
associations
and other
expenses.

(a) Reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

(2) The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe to any hospital infirmary nursing institution or other institution of a similar character such sum or sums as they may from time to time think fit not

A.D. 1925: exceeding in any year the amount which would be
— produced by the levying of a borough rate of one penny
in the pound and to charge the amount of any such
subscription to or apportion the same among all or any
of their funds and revenues.

Application
of revenue
and pay-
ment of ex-
penses of
under-
takings.

74.—(1) Notwithstanding anything contained in any previous enactment all money received by the Corporation on account of the revenue of the water undertaking and any other undertaking for the time being of the Corporation from which revenue is derived shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of those undertakings shall be paid out of that fund.

(2) Any moneys which the Corporation are required or authorised to pay or apply or may in the future be required or authorised to pay or apply under the following enactments (namely)—

Article 9 of the Scarborough Order 1921;

Section 60 (Application of revenue) of the Scarborough Corporation Water Act 1878;

Section 52 (Application of revenue) of the Scarborough Corporation Electric Lighting Order 1891;

Subsection (3) of this section;

shall for the purposes of subsection (1) of this section be deemed to be payments and expenses made and incurred in respect of the undertaking to which the said enactments respectively relate.

(3) Any income arising from any renewals fund depreciation fund contingent fund reserve fund or insurance or other similar fund shall be from time to time paid into the borough fund and any contributions due to any such fund as aforesaid shall be paid out of the borough fund.

(4) The Corporation may (if they think fit) apply money received by them on account of the revenue of any of the undertakings referred to in subsection (1) of this section in the provision of funds for working capital.

Separate
accounts to
be kept.

75.—(1) The Corporation shall notwithstanding the provisions of any enactment to the contrary keep their

A.D. 1925.

accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of the water undertaking of the Corporation on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed and applied by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed and applied for the purposes of the undertaking;
- (d) All other expenses (if any) of maintaining the undertaking;
- (e) The amount (if any) paid to any reserve fund which the Corporation are authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

76. The Corporation may guarantee the repayment of and the payment of interest upon money borrowed or to be borrowed by the Scarborough Harbour Commissioners in such manner as may be agreed between the Corporation and those commissioners provided that any guarantee or guarantees given by the Corporation under this section shall be subject to the condition that the total liability of the Corporation thereunder in any year shall not exceed the equivalent of a rate

Power to
guarantee
loans of
Harbour
Commis-
sioners.

A.D. 1925. of threepence in the pound levied on property in the borough assessable to the borough rate at the time such guarantee or guarantees is or may be given.

Corpora-
tion may
lend money
to certain
bodies and
persons.

77.—(1) The Corporation may advance on mortgage on such security and on such terms as may be agreed such sums of money as they may think fit by way of loan to the Raincliffe Trust Limited or other the owners for the time being of the estates and lands known as the Ruston Cliff Wood the Rowbrow Wood the Raincliffe Wood the Throxenby Mere and Lady Edith's Drive all in the urban district of Scalby and parish of East Ayton and the Corporation shall have all the powers of a mortgagee.

(2) The Corporation may guarantee the repayment of and the payment of interest upon money borrowed or to be borrowed by the Raincliffe Trust Limited or other the owners of the said estates and lands in such manner as may be agreed between the Corporation and such company or body.

PART VIII.

MISCELLANEOUS.

Amendment
of section
128 of Act
of 1889.

78. Section 128 (Corporation may define future line of streets) of the Act of 1889 shall be read and have effect as if the words "The Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919" were inserted therein instead of the words "The Public Health Act 1875."

Amendment
of section 61
of Act of
1900.

79. Section 61 (Elevation of buildings on front land to be subject to approval of Corporation) of the Act of 1900 shall be read and have effect as if the words "or in accordance with any agreement made with" were inserted therein immediately before the words "the Corporation" where those last-named words first occur in that section.

Power to
grant occa-
sional licences
for hackney
carriages and
other public
vehicles.

80. An occasional licence for a hackney carriage omnibus or other public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

81.—(1) The Corporation may from time to time make byelaws for fixing a place or places at which omnibuses may stop for the purpose of loading or unloading passengers and goods in the public streets of the borough and for prohibiting the stopping of omnibuses for that purpose at other places in those streets.

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Byelaws as to stopping-places for omnibuses.

(2) For the purposes of this section “omnibus” has the same meaning as in the Town Police Clauses Act 1889.

82.—(1) Subject to the provisions of this Act the Corporation may provide suitable places within the borough (hereinafter called “parking places”) on any land not forming part of a street repairable by the inhabitants at large at which vehicles or vehicles of any specified class or description may wait and may take such steps as may be necessary to adapt any such place for use as a parking place.

Provision of parking places.

(2) The Corporation may make regulations imposing conditions subject to which vehicles may be admitted into any parking place provided under this section and may by regulations prescribe a table of reasonable charges to be taken by them for the use of any such parking place and for the services of any attendant provided by them thereat and may prescribe different charges for different classes or descriptions of vehicle.

(3) Subject to the consent of the Minister of Health and to such conditions as he may impose the Corporation may appropriate for the purpose of this section any land vested in them and not acquired by them for the purposes of this section.

(4) The expenses incurred by the Corporation in the exercise of their powers under this section shall be defrayed as part of the expenses of the execution of the Public Health Acts and for that purpose money may be borrowed by the Corporation in the like manner and subject to the like conditions as for the purposes of those Acts.

83.—(1) Subject to the provisions of this Act the Corporation may by order determine that any part of any street within the borough repairable by the inhabitants at large shall be set apart as a parking place at which vehicles or vehicles of any specified class or

Parking of vehicles in streets.

A.D. 1925. description may wait and any such order may be varied or rescinded by a subsequent order.

(2) The Corporation may make regulations with respect to the use by persons of any such parking place and the use of the street by any person in accordance with those regulations shall not be deemed to be unlawful.

(3) An exercise by the Corporation of their powers under this section shall not render them subject to any liability in respect of loss of or damage to any vehicle while using a parking place or the fittings or contents of any such vehicle.

(4) Nothing in this section shall authorise the Corporation to set apart or maintain as a parking place any part of a street where the use of such part for that purpose would obstruct the reasonable flow of traffic along the street or unreasonably interfere with the user of the street by the public at large or prevent reasonable access to any premises or land abutting on or adjoining the street or cause a nuisance to any occupier of such premises or land.

(5) The Corporation shall not under the powers of this section interfere with or render less convenient the access to or exit from any passenger or goods station of the London and North Eastern Railway Company.

Provision of attendance and publication of regulations.

84.—(1) The Corporation may appoint with or without remuneration such officers as may be necessary for the superintendence of any parking place provided or set apart under this Act and for securing the observance of any regulations relating thereto.

(2) A copy of any regulations made under this Act and applying to a parking place shall be exhibited on or as nearly as may be adjacent to the parking place to which they relate.

Notice and appeal.

85.—(1) Where the Corporation propose—

(a) to appropriate land for the purposes of the section of this Act the marginal note whereof is “Provision of parking places”; or

(b) to make an order setting apart a part of a street as a parking place under the section of this Act the marginal note whereof is “Parking of vehicles in streets”;

notice of the proposal or of the intended order shall be published in at least one newspaper circulating within the borough and shall be posted for not less than fourteen days on the land proposed to be acquired or at each end of the part of the street proposed to be set apart as a parking place.

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(2) Every such notice shall contain—

- (a) a description of the area proposed to be appropriated or set apart as a parking place;
- (b) a statement of the date (not being less than twenty-eight days from the date of the notice) by which any person affected by the proposal may make objections or representations to the Corporation thereon in writing; and
- (c) an intimation that an appeal to a court of summary jurisdiction may be made against the proposed appropriation of the land or the intended order as the case may be by any person thereby aggrieved.

(3) The Corporation shall consider any objection or representation duly made to them as aforesaid and shall notify their decision to the person making the same.

(4) Any person deeming himself aggrieved by the decision of the Corporation so notified to him may within twenty-one days after the receipt of such notification appeal to a court of summary jurisdiction who may make such order in the matter and may attach such conditions thereto as they deem proper and may make such order as to costs as they think fit and any such costs shall be recoverable as a civil debt.

86.—(1) In the foregoing sections of this Act relating to parking places the word “vehicle” does not include any hackney carriage or omnibus as defined in the Town Police Clauses Acts 1847 and 1889 which is licensed to ply for hire within the borough.

Definition of vehicle and limitation of powers.

(2) The powers conferred by the sections aforesaid shall only be exercised where such exercise is reasonably required for the purpose of relieving congestion or facilitating traffic in the borough.

87. The Corporation may make byelaws prohibiting or restricting the use by persons riding bicycles tricycles or other similar vehicles or driving any carriage whether

Byelaws as to bicycles &c. on foot-paths.

A.D. 1925. — mechanically propelled or otherwise on any footpaths or passages specified and defined in such byelaws.

As to control of traffic by police.

88. Where any police constable in uniform in pursuance of any instructions general or special is regulating the traffic at any junction or crossing in any street any person driving or propelling any vehicle who wilfully neglects or refuses to stop the vehicle or to make it proceed or to make it keep to a particular line of traffic when so directed (by word of mouth or sign) by any such police constable in the execution of his duty shall on summary conviction be liable in respect of each offence to a fine not exceeding five pounds.

Application of provisions of existing Acts.

89. The following provisions of the Act of 1889 and the Act of 1900 shall with all necessary modifications extend and apply to and for the purposes of this Act as if the same were re-enacted in this Act (namely):—

The Act of 1889—

Section 265 (Service of notices on Corporation);

Section 267 (Compensation how to be determined).

The Act of 1900—

Section 7 (Power to deviate in constructing works);

Section 13 (Correction of errors &c. in deposited plans and book of reference);

Section 14 (Persons empowered by Lands Clauses Acts to sell lands may grant easements &c.);

Section 20 (Owners may be required to sell parts only of certain lands and buildings);

Section 68 (For protection of lenders);

Section 69 (Corporation not to regard trusts);

Section 71 (Application of moneys borrowed);

Section 87 (Expenses of execution of Act);

Section 133 (Informations by whom to be laid);

Section 135 (Provisions as to byelaws);

Section 139 (Compensation may be in land &c.);

Section 140 (Saving for indictments &c.);

Section 142 (Powers of Act cumulative):

Provided that—

A.D. 1925.

- (a) In the application of section 20 of the Act of 1900 that section shall be read and have effect as if the Second Schedule to this Act were therein referred to instead of the Second Schedule to the Act of 1900;
- (b) In the application of section 135 of the Act of 1900 to byelaws made under the sections of this Act of which the marginal notes are “Byelaws as to stopping places for omnibuses” and “Byelaws as to bicycles &c. on footpaths” the Secretary of State shall be substituted for the Minister of Health.

90. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part V. (Infectious disease and sanitary matters) of this Act as if those purposes had been mentioned in the said section 102.

Power to enter premises.

91. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part V. (Infectious disease and sanitary matters) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

Penalty on occupier refusing execution of Act.

92. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part V. (Infectious

As to appeal.

A.D. 1925. — disease and sanitary matters) of this Act or by any conviction or order made by a court of summary jurisdiction under the said provisions may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Application of
section 265 of
Public
Health Act
1875.

93. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Recovery of
demands.

94. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties
&c.

95. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Damages
and charges
to be settled
by justices.

96. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled or determined by a court of summary jurisdiction before whom any offender is convicted.

Consents
to be in
writing.

97. All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of

the town clerk or other duly authorised officer of the Corporation. A.D. 1925.

98.—(1) Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the Corporation under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution or order of the Corporation or any resolution order or report of any committee of the Corporation a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

(2) Section 134 of the Act of 1900 is hereby repealed.

99.—(1) A judge of any court or a justice shall not be disqualified from acting in the execution of the Act of 1900 or this Act by reason of his being liable to any rate. Judges &c. not disqualified.

(2) Section 141 (Judges &c. not disqualified) of the Act of 1900 is hereby repealed.

100.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Minister under the Public Health Act 1875. Inquiries by Minister of Health.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed

A.D. 1925. by that Minister not exceeding five guineas a day for
— the services of such inspector.

Crown
rights.

101. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of the Commissioners of Crown Lands on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

Repeal of
section 275
of Act of 1889.

102. Section 275 (Penalties to be paid over to treasurer &c.) of the Act of 1889 is hereby repealed.

Costs of
Act.

103. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or out of money to be borrowed for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1925

FIRST SCHEDULE.

RETURN OF RENT OR ANNUAL VALUE AND OF OTHER
PARTICULARS TO BE RENDERED UNDER THE SCARBOROUGH
CORPORATION ACT 1925.

1. Name of the street or road &c. in which the property is situate - Number of the house - - - - (If not numbered state the name by which known.) Whether occupied with or without stables or other premises as part of the same property - - - - The quantity of land (if any) and how used.	
2. Full Christian name and surname of occupier - - - -	
3. Name and address of owner or immediate lessor - - - - (If not known state the name and address of the agent or person to whom the rent is paid.)	
4. Whether the property is occupied— (a) Wholly as a private resi- dence - - - - or (b) Partly as a dwelling-house and partly for trade or business purposes - - - - or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - - - (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any) -	(a) (b) (c) (d)

A.D. 1925.

5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - - -	
6. Amount of rent - - - - - or if ground rent only is paid state its amount - - - - -	£ per £ per
7. Whether the property is held under lease or agreement for a period of years - - - - - or By the year quarter month or week - - - - -	
8. (a) Date of commencement of term of lease or agreement - - - - - (b) Term of years for which granted (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to laying out money in building rebuilding or improvements - - - - - (If none insert "None.")	(a) (b), (c) Amount paid for lease £
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual Value £
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ . Borne by the (b) £ . Borne by the

A.D. 1925.

11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -

12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - -
(If each undertakes to bear part only of the cost of repairs state the particulars.)

DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

SECOND SCHEDULE.

PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

Borough.	Numbers on deposited plans.
Scarborough - - -	197 197A 197B 209 217 to 244 246 to 264 267 to 282 286 to 291 293 to 295 325 to 337 339 341 to 344 347 to 350.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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